

MASTER SERVICES AGREEMENT (V2)

This Master Services Agreement ("Agreement") is entered into and made effective as of October 1, 2026 ("Effective Date"), by and between:

Party A: Apex Horizon Cloud Ltd., a commercial enterprise organized and existing under the commercial laws of the Dubai International Financial Centre, with executive offices at Level 14, Al Fattan Currency House, DIFC, Dubai, UAE ("Service Provider"), and

Party B: Beacon Oasis Logistics FZ-LLC, a free zone limited liability company organized and existing under the regulations of Dubai South, with offices at Building A3, Logistics District, Dubai South, UAE ("Customer").

RECITALS

WHEREAS, Customer desires to procure enterprise cloud logistics orchestration, cargo analytics telemetry, and automated clearance infrastructure services; and WHEREAS, Service Provider develops and operates high-availability cloud platforms and wishes to deliver such managed services in accordance with this Agreement.

NOW, THEREFORE, the parties mutually covenant and agree as follows:

SECTION 1. DEFINITIONS AND RULES OF INTERPRETATION

- 1.1 "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common corporate ownership with an applicable party.
- 1.2 "Agreement" means this Master Services Agreement, together with all executed Statements of Work, Service Level Agreements, and annexed Schedules.
- 1.3 "Applicable Law" means all statutory enactments, administrative orders, decrees, and regulatory rules in force within the United Arab Emirates and the DIFC.
- 1.4 "Business Day" means any day excluding Saturdays, Sundays, and official public holidays recognized by the government of the United Arab Emirates.
- 1.5 "Customer Data" means all operational records, waybills, cargo manifests, and electronic transmissions submitted to the Service Provider by Customer.
- 1.6 "Deliverables" means all architectural designs, telemetry pipelines, and customized modules delivered to Customer under an applicable Statement of Work.

SECTION 1. DEFINITIONS (CONTINUED)

1.7 "Intellectual Property Rights" means all patents, copyrights, moral rights, trademarks, trade secrets, design rights, and know-how recognized globally.

1.8 "Service Levels" means the availability metrics, response times, and uptime commitments set forth in Schedule A attached hereto.

1.9 "Statement of Work" or "SOW" means a mutually executed project schedule setting forth specialized scope, timelines, and commercial parameters.

SECTION 2. SERVICES AND STATEMENTS OF WORK

2.1 Provision of Services. Service Provider shall provide Customer with access to the managed logistics platform and perform the integration services.

2.2 Work Orders. Each project engagement shall be documented in an SOW executed by authorized signatories of both parties prior to commencement.

2.3 Operational Standards. The Service Provider will perform all Services consistent with recognized industry best practices, using competent personnel who hold appropriate expertise and training.

2.4 Customer Cooperation. Customer shall provide timely access to internal technical environments, operational specifications, and personnel.

SECTION 2.5 WARRANTY AND PERFORMANCE TIMEFRAME

The Service Provider covenants and guarantees that all deliverables supplied hereunder shall strictly conform to the specifications and shall remain free from material defects for

a continuous period of one hundred and eighty (180) calendar days following final acceptance by the Customer.

2.6 Remedy for Non-Conformance. If Customer gives written notice of any defect within the warranty period, Service Provider shall remediate without cost within ten (10) Business Days.

SECTION 3. SERVICE LEVEL COMMITMENTS AND AVAILABILITY

3.1 System Availability Target. Service Provider commits to maintain production platform availability of at least 99.9% across each calendar billing month.

3.2 Excluded Downtime. Availability calculations shall exclude planned maintenance windows scheduled between 02:00 and 06:00 Gulf Standard Time.

3.3 Service Credits. If availability falls below 99.9%, Customer shall receive a credit equal to 5% of monthly fees for each full 0.5% degradation.

3.4 Sole Remedy. The service credits provided under this Section 3 shall constitute Customer's sole monetary remedy for platform downtime.

3.5 Monitoring Reports. Service Provider shall publish monthly uptime records to Customer's designated administrative dashboard.

SECTION 4. FEES, INVOICING, AND PAYMENT TERMS

4.1 Invoicing Cadence. Service Provider shall invoice Customer monthly in advance for subscription retainers, and monthly in arrears for usage metrics.

4.2 Payment Terms. Customer shall pay all properly invoiced amounts within sixty (60) days from the invoice date. Late payments shall accrue interest at a rate of 1.5% per month on the outstanding balance.

4.3 Currency. All fees, charges, and reimbursable sums shall be quoted and paid in United Arab Emirates Dirhams (AED).

4.4 Value Added Tax. Stated fees are exclusive of UAE Value Added Tax (VAT), which shall be charged at the statutory rate and itemized on tax invoices.

4.5 Disputed Invoices. Customer must provide written objection specifying disputed items within fifteen (15) Business Days of invoice transmission.

4.6 Undisputed Sums. Payment of undisputed invoice portions shall not be delayed or withheld pending resolution of disputed amounts.

SECTION 5. INTELLECTUAL PROPERTY RIGHTS AND LICENSING

5.1 Service Provider Background IP. Service Provider retains sole and exclusive title to all pre-existing software, algorithms, models, and core engines.

5.2 Customer License. Service Provider grants Customer a non-exclusive, non-transferable license to access and utilize the platform during the Term.

5.3 Deliverables and Custom Code. Unless otherwise specified in an SOW, custom workflow integrations created specifically for Customer shall vest in Customer.

5.4 Restrictions. Customer shall not decompile, reverse-engineer, distribute, or create derivative works of Service Provider Background IP.

5.5 IP Audits and Compliance Verification. Either party may verify compliance with license scopes upon fourteen (14) days advance written notice.

Each party shall bear its own internal administrative costs, legal fees, and operational expenses incurred in connection with its performance and compliance obligations under this Section.

SECTION 6. CONFIDENTIALITY AND DATA PROTECTION

6.1 Confidential Information. "Confidential Information" encompasses all proprietary technical, financial, or commercial disclosures made by either party.

6.2 Nondisclosure Obligations. The receiving party shall safeguard all Confidential Information with the same degree of care as its own proprietary data.

6.3 Exceptions. Confidential obligations do not apply to data that is public knowledge, independently developed, or obtained lawfully without restriction.

6.4 Return of Materials. Immediately following the expiration or termination of this Agreement, both parties must return or certify the destruction of all recorded Confidential Information in their custody.

6.5 Data Protection Protocols. Both parties shall maintain organizational and physical security controls in compliance with UAE Federal Data Protection Law. Each party shall bear its own internal administrative costs, legal fees, and operational expenses incurred in connection with its performance and compliance obligations under this Section.

SECTION 7. REPRESENTATIONS AND WARRANTIES

7.1 Mutual Authority. Each party warrants that it possesses full corporate power, capacity, and legal authority to execute and perform this Agreement.

7.2 Compliance with Laws. Both parties covenant to comply with all applicable UAE export controls, anti-bribery regulations, and sanction regimes.

7.3 Non-Infringement. Service Provider warrants that the Services provided hereunder do not infringe any third-party Intellectual Property Rights.

SECTION 8. INDEMNIFICATION OBLIGATIONS

8.1 Service Provider Indemnity. Service Provider shall defend, indemnify, and hold harmless Customer against any third-party claim alleging intellectual property infringement.

8.2 Customer Indemnity. Customer shall defend and indemnify Service Provider against claims arising from unlawful Customer Data or unauthorized platform misuse.

8.3 Indemnity Procedure. The indemnified party must give prompt notice, grant full defense control, and provide reasonable cooperation.

SECTION 9. LIMITATION OF LIABILITY AND DAMAGES

9.1 Aggregate Liability Cap. Subject to Section 9.3, each party's aggregate cumulative liability arising out of or related to this Agreement shall be strictly capped at and limited to AED 1,000,000.

9.2 Consequential Damages Exclusion. Neither party shall be liable for indirect, incidental, special, punitive, or consequential losses, or loss of profits.

9.3 Uncapped Liabilities. Nothing in this Agreement shall exclude or limit liability for gross negligence, willful misconduct, or indemnification under Section 8.

9.4 Mitigation of Losses. Both parties shall take all commercially reasonable actions to mitigate damages arising from any breach or claim.

SECTION 10. TERM AND TERMINATION

10.1 Term. This Agreement commences on the Effective Date and shall remain in effect for an initial duration of thirty-six (36) calendar months.

10.2 Termination for Cause. Either party may terminate immediately if the other party commits a material breach and fails to cure within thirty (30) days.

10.3 Effect of Termination. Expiration or termination shall not relieve either party of accrued financial debts or surviving obligations.

10.5 Transition Assistance. Upon written request, Service Provider shall offer transition assistance for up to sixty (60) days at standard rate card fees.

SECTION 11. NON-SOLICITATION OF PERSONNEL

11.1 Non-Solicitation. During the Term and for a period of twelve (12) months following termination, neither party shall directly solicit for employment any personnel of the other party involved in the delivery or receipt of the Services.

SECTION 12. NOTICES AND OFFICIAL COMMUNICATIONS

12.1 Delivery Method. All legal notices shall be in writing and delivered by hand, registered courier, or confirmed digital transmission.

12.2 Contact Addresses. Notices to Service Provider: Level 14, Al Fattan Currency House, DIFC, Dubai. Notices to Customer: Building A3, Dubai South.

SECTION 13. FORCE MAJEURE AND EXCUSABLE DELAYS

13.1 Excusable Delay. Neither party shall be liable for delay or failure caused by acts of God, armed conflict, national cyber disasters, or grid outages.

13.2 Notice of Delay. The affected party must deliver written notification within forty-eight (48) hours detailing the event and estimated duration.

SECTION 14. GOVERNING LAW AND DISPUTE RESOLUTION

14.1 Governing Law. This Agreement and all claims arising hereunder shall be governed by and construed in accordance with the laws of the DIFC.

14.2 Arbitration. Any controversy or dispute shall be settled exclusively by arbitration administered under the Arbitration Rules of the DIFC-LCIA.

14.3 Seat and Language. The seat of arbitration shall be Dubai International Financial Centre, UAE, and proceedings shall be in English.

14.4 Severability. If any provision is deemed invalid or unenforceable, remaining terms shall continue in full legal force and effect.

14.5 Amendments. No modification or waiver of any provision shall be valid unless executed in writing by authorized corporate officers.

SCHEDULE A: SERVICES SPECIFICATION AND SERVICE LEVELS

1. Core Cloud Logistics Platform.

Service Provider shall deploy, host, and maintain the multi-tenant telemetry gateway and clearance routing services in dedicated regional data centers.

2. Performance SLA Targets.

- Production Service Availability: 99.9% uptime per calendar month.
- Critical Incident Response Time: Within fifteen (15) minutes, available 24 hours per day, 7 days per week.
- Major Incident Response Time: Within sixty (60) minutes during standard UAE Business Hours.

3. Backup and Disaster Recovery.

- Recovery Point Objective (RPO): Maximum fifteen (15) minutes of data loss.
- Recovery Time Objective (RTO): Maximum four (4) hours to restore full operational services.

SCHEDULE B: COMMERCIAL PRICING AND SIGNATURE BLOCK

1. Base Subscription Retainer: AED 45,000 per month, invoiced in advance.
2. Ingestion Fee: AED 0.25 per transaction manifest processed.
3. Consulting and Custom Engineering: AED 850 per professional hour.

IN WITNESS WHEREOF, the parties hereto have caused this Master Services Agreement to be executed by their duly authorized representatives as of the Effective Date.

APEX HORIZON CLOUD LTD.

BEACON OASIS LOGISTICS FZ-LLC

By: _____ By:

Name: Tariq Mansoor

Name: Farida Al-Hashemi

Title: Managing Director

Title: Chief Commercial Officer

Date: October 1, 2026

Date: October 1, 2026